

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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HARREL ARMSTRONG,

Plaintiff,

-against-

THE CITY OF NEW YORK,
DET. ANDREW DUGUID (SHIELD #547)
DET. MICHAEL ROBBERT (SHIELD 6469) and
DET. DAVID COWAN (SHIELD # 1558)

Defendants.
-----X

11 CV 4051 (KAM)(MDG)

AMENDED COMPLAINT

JURY DEMAND

Plaintiff, by his attorney, Philip Akakwam, Esq., complaining of the defendants, The City of New York, Det. Andrew Duguid (Shield #547), Det. Michael Robbert (Shield #6469) and Det. David Cowan (Shield #1558), upon information and belief alleges as follows:

INTRODUCTION

1. This is an action at law to redress the deprivation under color of statute, ordinance, regulation, custom, or usage of rights, privileges, and immunities secured to the plaintiff by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States, and by Title 42 U.S.C. § 1983 [and § 1985].

2. Plaintiff seeks monetary damages for: the false arrest, false imprisonment and detention of Plaintiff, Harrel Armstrong, and for deprivation of medical treatment, and otherwise, for the violation of Plaintiff's federally guaranteed constitutional and civil rights. Plaintiff seeks whatever other relief is appropriate and necessary in order to serve the interest of justice and assure that his remedy is full and complete.

JURISDICTION

3. The jurisdiction of this Court is invoked pursuant to and under 28 U.S.C. Sections 1331 and 1343[3] and [4] in conjunction with the Civil Rights Act of 1871, 42 U.S.C. Section 1983, and under the Fourth and Fourteenth Amendments to the United States Constitution.

4. Jurisdiction is also invoked pursuant to and under 28 U.S.C. Section 1367, entitled Supplemental Pendent Party Jurisdiction.

5. Plaintiff requests that the Court invoke pendent jurisdiction over any and all claims arising under the laws and Constitution of the State of New York.

6. The State law claims have a common nucleus of operative facts with the federally based claims and they arise out of the same transaction(s) and occurrence(s) giving rise to the Plaintiff's federally based claims and causes of action.

7. Plaintiff also invokes the jurisdiction of this Court in conjunction with the Declaratory Judgment Act, 28 U.S.C. Sections 2201, et seq., this being an action in which Plaintiff, while seeking monetary damages, also seeks declaratory and injunctive relief if such is deemed necessary and desirable and in the interest of justice in order to provide Plaintiff with a full and complete remedy for the violation of her rights.

PARTIES

8. Plaintiff, a black male senior citizen, is a resident of the City of New York, County of Kings and State of New York.

9. The City of New York is a municipal entity existing under the laws and Constitution of the State of New York and was the employer of the defendant police officers through its Police Department - New York City Police Department- and the actions of the police officers

complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.

10. At all times herein, individual defendants, Det. Andrew Duguid (Shield #547), Det. Michael Robbert (Shield #6469) and Det. David Cowan (Shield #1558), were employed as police officers of the City of New York, State of New York, and were acting under the color of their official capacity and their acts were performed under color of the statutes and ordinances of the City of New York and the State of New York. The defendant Police Officers were the servants, agents, and employees of their co-defendant, the City of New York. Notwithstanding the wrongful and illegal nature of their acts and conduct as hereinafter described, they were taken in and during the course of their duties and functions as New York City Police Officers and incidental to the otherwise lawful performance of the same.

11. All conditions precedent to filing of this action have been complied with; on June 23, 2011, within ninety days after the claim alleged in this complaint arose, a written notice of claim, sworn to by the plaintiff, was served upon the defendant City of New York by personal delivery of the notice in duplicate, to the person designated by law as one to whom a summons issued against such party may be delivered in an action in the Supreme Court. The said Notice of Claim was assigned claim number 2011PI0024543.

12. At least thirty days have elapsed since the service of the notice of claim, and adjustment or payment of the claim has been neglected or refused.

13. This action has been commenced within one year and ninety days after the happening of the event upon which the claim is based.

FACTS COMMON TO ALL CAUSES OF ACTION

14. On or about June 13, 2011, at approximately 5:30 p.m., defendant Police Officers were on duty and were acting within the scope of their authority as police officers for defendant City of New York and in furtherance of the business of the City of New York.

15. On the date and time aforesaid, plaintiff was sitting and playing the game of dominos in front of his building located at 1782 Broadway, Brooklyn, Kings County, New York when about 12 police officers in plain clothes arrived and arrested plaintiff with two other people with whom he was playing the games.

16. When the officers arrived, they told plaintiff to stand up and when he complied, they proceeded to search and cuff him there in front of his house in the view of the public passing by on the street.

17. Plaintiff asked officers the reason for his arrest but his questions were ignored.

18. Plaintiff advised the officers that had a triple bypass surgery in December 2010, that he was still recuperating from the surgery and was still on medications which he was required to take about two times a day.

19. The defendant officers ignored plaintiff's complaint about his health condition and did not permit him to bring his medications.

20. While plaintiff was in handcuffs, the officers went into his building, broke down the door to plaintiff's apartment, went inside and searched said apartment without a warrant and without plaintiff's consent.

21. Plaintiff was placed in a van with the other two people arrested with him and they were driven around the city of Brooklyn for more than five hours with stops at various other

locations where police made other arrests.

22. Thereafter, plaintiff was transported to the 73rd police precinct where he was searched, fingerprinted, photographed and then thrown into a small cell room with about four other arrestees.

23. At this time, plaintiff again advised officers at the precinct of his medical condition and the need to take his medication but the officers ignored his complaints about his health and need for medication.

24. Plaintiff remained in the cell at the precinct for hours before he was taken to the Central Booking where he was again searched, processed and thrown into a holding cell.

25. At Central Booking, plaintiff was examined by an EMS personnel and plaintiff advised them of his medical condition. After examination by EMS, plaintiff was again thrown into the cell notwithstanding his medical condition.

26. Plaintiff was held in the cell at Central Booking for hours before he was taken to Kings County Hospital for examination following apparent deterioration of his condition.

27. At the hospital, plaintiff was kept in handcuffs and leg chains.

28. After examination at Kings County Hospital, plaintiff was returned by the police to the 73rd precinct where he was again thrown into the cell.

29. Plaintiff remained in the precinct cell for more hours before he was released and told to go home.

30. Throughout the duration of this incident, plaintiff was never told why he was arrested, and no charges were brought against him.

31. And plaintiff's life was put in danger as he was deprived access to his heart

medication for the entire duration of the incident.

32. The foregoing is part of a pattern of harassment, intimidation, humiliation, false arrests and imprisonment and abuse of the criminal process to which plaintiff has been subjected by officers of the 73rd police precinct.

33. On or about May 4, 2011, plaintiff was arrested while he was inside a pool room located within the building where he resides.

34. On said date, plaintiff was in the pool room watching people shooting pool, when some police officers came into the place and arrested everybody including plaintiff who advised them of his recent triple bypass surgery.

35. Plaintiff asked for reason for his arrest but got no response from the officers.

36. Plaintiff was transported to the 73rd precinct where he was searched, fingerprinted, photographed and thrown into cell.

37. He was later taken to Central Booking where he was held until the following day when he was released without any charges.

38. And prior to the above incidents, plaintiff was unlawfully arrested on March 23, 2011 at his residence.

39. On said date, plaintiff had just come into the pool house in the building where he lives when police officers came into the place and arrested him with a number of other people. This occurred barely three months after plaintiff's triple bypass surgery and he advised the officers as such but his complaint about his health condition was ignored.

40. Plaintiff was transported to the precinct and thrown into cell.

41. He remained in the precinct cell for many hours before he was taken to Central

Booking.

42. Plaintiff was later brought to court upon charges of criminal possession of a controlled substance even though no such substance had been found in his possession.

43. Again, on or about November 22, 2011, at approximately 6:30 PM, at plaintiff's residence located at 1782 Broadway, Brooklyn, plaintiff was assaulted, falsely arrested and imprisoned and later transported, in custody, to the 73rd Police Precinct.

44. At the time and place mentioned in the preceding paragraph, plaintiff was eating yogurt inside the Pool Room located on the ground floor of his building when about six (6) police officers in plain clothes arrived and arrested him with two other people inside the pool room.

45. Upon entering the pool room, one of the officers yelled out that everybody inside the room was under arrest for possession. The officers told plaintiff to stand up and when he complied, they searched him and found nothing but his keys. Then, they cuffed him

46. One of the officers recognized plaintiff, called him by his name and then spoke to the other officers that plaintiff was a "good guy" and that he had nothing to do with any alleged possession. Plaintiff recognized this officer as part of a team that had previously arrested him at the same place. Notwithstanding said officer's advise that plaintiff had nothing to do with whatever reason the officers were in the building, the officers arrested plaintiff with two other people in the pool room.

47. Plaintiff advised the officers that he had a heart condition, and that he was on medications which he was required to take about two times a day. The officers ignored plaintiff's complaint about his health condition.

48. Plaintiff was placed in a van with the other two people arrested with him and they

were driven around for many hours and later transported to the 73rd police precinct where plaintiff was searched, fingerprinted, photographed and then thrown into a cell.

49. He remained in the cell at the precinct for hours before he was taken to the Central Booking. At the Central Booking, plaintiff advised the officers and the EMS personnel of his medical condition and that he had missed the morning dose of his heart medication.

50. Plaintiff was held in the cell at Central Booking until about 12 noon on November 23, 2011 (a day before the Thanksgiving Holiday) when he was released without any charges.

51. Plaintiff's life was put in danger as he was deprived access to his heart medication, and his thanksgiving holidays was disrupted without justification.

52. Plaintiff is constantly subjected to harassment, intimidation and illegal searches and threats by police officers of the City of New York.

53. Plaintiff has been stopped on the streets on several occasions without any justifiable reason and parted down by plain clothes officers.

54. For example, in or about November 2010, while walking down the public street at Lexington and Broadway, plaintiff was stopped by two plain clothes officers frisked and parted him down on the street. Then the officers asked plaintiff: "you have nothing on you?" When plaintiff asked them why they were searching him, they told him that he lived in a "hot" area.

55. At the time of the above arrests and detention, plaintiff was lawfully inside the building where he lives. Plaintiff did not engage in any conduct which would justify a police intrusion on his right to privacy and quite enjoyment of his home.

56. Before and at the time plaintiff was unlawfully arrested, seized, and searched by the police, he had not been engaging in any suspicious or unlawful conduct. Therefore, his arrest

without a warrant was completely unjustified, in that it was made without reasonable suspicion or probable cause.

57. Plaintiff was falsely arrested, subjected to abuse of criminal process, assaulted, battered, and subjected to cruel and inhuman treatment by being denied access to his medication and timely medical treatment.

58. Plaintiff suffered physical injuries, including injury to his wrists, shoulder, elbow and severe chest pain. Moreover, plaintiff suffered emotional distress and mental anguish and psychological trauma as a consequence of the assault and battery, and as a result of his frequent unlawful and unjustified arrests and imprisonment of plaintiff by defendant officers.

59. The Plaintiff suffered violations of his federally guaranteed constitutional and civil rights including rights guaranteed to him under the Fourth and Fourteenth Amendments to the United States Constitution and the Civil Rights Act of 1871, 42 U.S.C. Section 1983.

60. Defendant City of New York, as a matter of policy and practice, has with deliberate indifference failed to properly sanction or discipline police officers including the defendants in this case, for the violations of the constitutional rights of citizens, thereby causing police officers including defendants in this case, to engage in unlawful conduct.

61. Defendant City of New York, as a matter of policy and practice, has with deliberate indifference failed to properly sanction or discipline police officers including the defendants in this case, who are aware of and subsequently conceal violations of the constitutional rights of citizens by other police officers thereby causing and encouraging police officers including defendants in this case, to engage in unlawful conduct

62. The actions taken against plaintiff by the defendant Officers herein were also propelled

by a policy and practice of the City of New York which promotes an “ends justifies the means” philosophy of combating crime which causes officers to arrest individuals, particularly blacks, without probable cause and to subject such individuals to false criminal charges, to excessive force, assault and battery. The said policy and practice falls disproportionately on persons of color.

63. The actions of the defendants, acting under color of State law, deprived plaintiff of his rights, privileges and immunities under the laws and constitution of the United States; in particular, the rights to be secure in his person and property, to be free from false arrest, and from malicious prosecution, abuse of process, and the right to due process.

64. The policies and practices complained of herein also violate the rights of Plaintiff under the Constitution and laws of the City and State of New York.

65. The actions and conduct of the Officers and the policies and practices of the City of New York were negligent and the proximate cause of damages to the Plaintiff.

66. The Defendant Officers acted together and in concert sanctioning and ratifying and otherwise condoning the wrongful actions being taken by each of the defendant Officers in a collective manner and fashion.

67. The Plaintiff has no other adequate remedy at law but for this action.

AND AS FOR A FIRST CAUSE OF ACTION

68. Plaintiff reiterates paragraphs 1 through 67 and incorporates such by reference herein.

69. Defendant Police Officers “John Does 1-12” violated the Plaintiff’s right to be free from false arrest and false imprisonment guaranteed to him under the Fourth and Fourteenth Amendments to the United States Constitution, and Plaintiff’s right not to be denied his liberty

without due process of law, secured to him under the Fifth and Fourteenth Amendments to the Constitution. By violating plaintiff's constitutional rights under color of State Law, the Defendant Police Officers violated the Civil Rights Act of 1871, 42 U.S.C. Section 1983.

70. As a result of plaintiff's false arrest and imprisonment, plaintiff has been caused to suffer humiliation, bodily pain, mental anguish, embarrassment, was prevented from attending to his necessary affairs, and has been caused to incur legal expenses, medical expenses and has been otherwise damaged.

AND AS FOR A SECOND CAUSE OF ACTION

71. Plaintiff reiterates paragraphs 1 through 70 and incorporates such by reference herein.

72. Defendant Police Officers Det. Andrew Duguid (Shield #547), Det. Michael Robbert (Shield #6469) and Det. David Cowan (Shield #1558) subjected plaintiff to cruel and unusual punishment following his arrest by depriving plaintiff access to his heart medication and by denying him timely medical treatment despite knowing about plaintiff's medical condition. In violation of plaintiff's Eight Amendment rights under the U.S. Constitution, the defendants deliberately ignored plaintiff's advise that he was a heart patient who had recently undergone a triple bypass surgery and who needed to take certain prescribed medications a number of times daily. By violating plaintiff's constitutional rights under color of State Law, the Defendant Police Officers violated the Civil Rights Act of 1871, 42 U.S.C. Section 1983.

73. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damage herein before stated.

AND AS FOR A THIRD CAUSE OF ACTION

74. Plaintiff reiterates paragraphs 1 through 73 and incorporates such by reference herein.

75. The defendants entered and searched plaintiff's home without a warrant and without his consent, and despite being specifically told by plaintiff that they could not enter his home.

76. The above-described conduct of the defendants constituted a violation of the Fourth Amendment rights of the plaintiff to be free from an unreasonable search of his home.

By violating plaintiff's constitutional rights under color of State Law, the Defendant Police Officers violated the Civil Rights Act of 1871, 42 U.S.C. Section 1983.

77. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damage herein before stated.

AND AS FOR A FOURTH CAUSE OF ACTION

78. Plaintiff reiterates paragraphs 1 through 77 and incorporates such by reference herein.

79. Defendant Police Officers falsely arrested and imprisoned plaintiff in violation of the Common Law.

80. The false arrest and imprisonment of plaintiff was carried out without a valid warrant, without plaintiff's consent, and without probable cause or reasonable suspicion.

81. Defendant Police Officers acted with malice and reckless and intentional disregard for Plaintiff's rights under common law when they arrested and imprisoned Plaintiff because they were acting on allegations they knew to be false. Therefore, said Defendant Police Officers are guilty of egregious and gross misconduct toward plaintiff.

82. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damage herein before stated.

AND AS FOR A FIFTH CAUSE OF ACTION

83. Plaintiff reiterates paragraphs 1 through 82 and incorporates such by reference herein.

84. By arresting, detaining and imprisoning plaintiff, without justification, probable cause or reasonable suspicion, depriving him of medical treatment, and assaulting him, the Defendant Officers, deprived plaintiff of rights, remedies, privileges and immunities guaranteed to every New Yorker by Article 1, Section 12 of the New York State Constitution.

85. In addition, the defendant officers conspired among themselves to deprive plaintiff of his constitutional rights secured by Article 1, Section 12 of the New York State Constitution, and took numerous overt steps in furtherance of such conspiracy, as set forth above.

86. The Defendant Officers acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employment as NYPD Officers. Such acts by Defendant Officers were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive the plaintiff of his constitutional rights secured by Article 1, Section 12 of the New York State Constitution.

87. Defendants, their officers, attorneys, agents, servants and employees were responsible for deprivation of Plaintiff's State Constitutional rights. Defendant City, as employer of each of the defendant officers, is responsible for their wrongdoing under the common law doctrine of respondeat superior.

88. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damage herein before stated.

AND AS FOR A SIXTH CAUSE OF ACTION

89. Plaintiff reiterates paragraphs 1 through 88 and incorporates such by reference herein.

90. The conduct of the defendant officers was negligent and the defendant City was negligent in promoting policies and practices that encouraged such conduct.

91. As a direct and proximate result of the conduct and abuse of authority detailed above, Plaintiff sustained the damage herein before stated.

AND AS FOR A SIXTH CAUSE OF ACTION

(Monell/42 U.S.C. Section 1983: Claim Against Defendant City of New York)

92. Plaintiff reiterates paragraphs 1 through 91 and incorporates such by reference herein.

93. The foregoing violations of plaintiff's federal constitutional rights and resultant injuries were directly, foreseeably and proximately caused by conduct, chargeable to defendant City of New York, amounting to deliberate indifference to the constitutional rights of persons, including Plaintiff, who are investigated, arrested, or prosecuted for alleged criminal activities.

94. Defendant City of New York failed to provide proper training and/or failed to insure that the training provided was adequately understood in regard to the following tasks which police officers commonly perform:

- (a) The determination of probable cause to make an arrest;
- (b) The duty to take into account the totality of the circumstances in determining the existence of probable cause to make an arrest;
- (c) The circumstances under which investigative detentions may lawfully occur and the manner in which they may lawfully be executed;
- (d) The scope of authority to search provided by a search warrant;

- (e) The very limited circumstances under which a home may be entered without a warrant;
- (f) The very limited circumstances under which a warrantless search may be carried out.

95. Defendant City of New York maintained unwritten customs and practices which permitted or condoned the unlawful searches of persons, the unlawful searches of homes, the unlawful seizure of persons, subjecting citizens to disparately harsh law enforcement practices on account of their race. These customs and practices are demonstrated by the failure of said defendant to properly investigate numerous complaints from citizens alleging such police misconduct and by their failure to take adequate remedial action where misconduct has occurred.

96. These customs and practices are further demonstrated by defendant's practice of promoting officers who were the subject of judicial finding of unconstitutional conduct, who were the subject of an inordinate number of citizen complaints and lawsuits alleging misconduct, and/or whose conduct evidenced racial discrimination against African-American residents of the city.

97. Defendant City of New York acted intentionally, wilfully and/or with deliberate indifference to the rights of plaintiff. The acts and omissions of said defendant described above were a direct cause of the injuries suffered by plaintiff.

98. The aforesaid deliberate or *de facto* policies, procedures, regulations, practices and/or customs (including the failure to properly instruct, train, supervise and/or discipline employees with regard thereto) were implemented or tolerated by policymaking officials for the Defendant City of New York, including but not limited to, the New York City Police Commissioner, who knew or should have known that such policies, procedures, regulations, practices and/or customs

concern issues that regularly arise in the investigation and prosecution of criminal cases;

99. The policymaking officials at NYPD know or ought to have known that such issues that regularly arise in the investigation and prosecution of criminal cases either present police employees with difficult choices of the sort that instruction, training and/or supervision will make less difficult or that the need for further instruction, training, supervision and/or discipline was demonstrated by a history of police employees mishandling such situations and making the wrong choice.

100. The aforementioned policymaking officials knew that the wrong choice by police officers concerning determination of probable cause will frequently cause the deprivation of the constitutional rights of criminal suspects or defendants and cause them constitutional injury.

101. The aforementioned policymaking officials had the knowledge and the notice alleged in the preceding paragraphs based upon, among other circumstances, numerous civil lawsuits, some of which resulted in substantial civil settlements, credibly alleging that police officers had conducted searches or arrests without probable cause.

102. Said notice is also based upon the inherent obviousness of the need to train, supervise and discipline police officers in their aforementioned constitutional obligations to counteract the pressures on officers and the powerful incentives they have to close cases and to obtain arrests and convictions.

103. During all times material to this Complaint, the Defendant City and its policy making officials owed a duty to the plaintiff and the public at large, which they knowingly and intentionally breached, or to which they were deliberately indifferent, to implement policies, procedures, customs, practices, training and discipline sufficient to prevent or deter conduct of

their employees violating the aforementioned constitutional rights of innocent members of the public including plaintiff.

104. As part of its policies, customs and practices, Defendant City has failed to take proper corrective and punitive actions against overreaching police officers thus creating the impression that crime reduction is paramount and triumphs over constitutional rights in all circumstances.

105. As a result of inadequate training of police officers on the practical meaning of probable cause for arrest, officers frequently detain and/or arrest citizens based on their hunches, inklings, or mere suspicion and without reasonable or probable cause.

106. The aforesaid policies, procedures, regulations, practices and/or customs of Defendant City and its police department, the NYPD, were collectively and individually a substantial factor in bringing about the aforesaid violations by the individual police defendants of Plaintiff's rights under the Constitution and laws of the United States.

107. By virtue of the foregoing, Defendant City of New York is liable for having substantially caused the foregoing violations of Plaintiff's constitutional rights and his constitutional injuries.

AND AS FOR A SEVENTH CAUSE OF ACTION

(Negligent Hiring, Training and Supervision Under State Law; Defendant City)

108. Plaintiff reiterates paragraphs 1 through 107 and incorporates such by reference herein.

109. By virtue of the foregoing, defendant City of New York is liable to plaintiff because of its intentional, deliberately indifferent, careless, reckless, and/or negligent failure to adequately

hire, train, supervise, and discipline its agents, servants and/or employees employed by the NYPD with regard to their aforementioned duties.

110. As a direct and proximate result of the acts and omissions of the defendants described in this Complaint, plaintiff suffered a significant loss of his liberty and violation of his federal constitutional rights, was prevented from attending to his necessary affairs and suffered and continues to suffer significant emotional pain, distress, humiliation and embarrassment.

WHEREFORE, Plaintiff demands judgment against the Defendants as follows:

- i. For compensatory damages in an amount to be determined at trial - against all defendants, jointly and severally;
- ii. For punitive damages against the individual defendants in an amount to be determined at trial;
- iii. For reasonable attorneys' fees, together with costs and disbursements of this action, pursuant to 42 U.S.C. § 1988 and to the inherent powers of this Court;
- iv. For pre-judgment interest as allowed by law; and
- v. For such other and further relief as the court deems just and proper.

Dated: Brooklyn, New York
March 10, 2012

LAW OFFICE OF PHILIP AKAKWAM

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